

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alyssa Rogowski	Team: Squad #14	CCRB Case #: 201900940	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 01/25/2019 11:48 AM	Location of Incident: Midtown South (14th Precinct) Stationhouse; § 87(2)(b)	18 Mo. SOL 3/11/2021	Precinct: 14
Date/Time CV Reported Fri, 01/25/2019 8:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/31/2019 9:55 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Adrian Calemno	4586	926631	MTS DET
2. DT3 John Kiernan	2280	933894	MTS DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Kara Darcey	4032	952638	MTS DET
2. DT2 Gary Scollard	07804	907306	MTS DET
3. DT3 Michael Puma	01331	921692	MTS DET

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Adrian Calemno	Force: At the 14th Precinct stationhouse in Manhattan, Detective Adrian Calemno used physical force against § 87(2)(b)	A . Exonerated
B . DT3 John Kiernan	Abuse: At § 87(2)(b) in Manhattan, Detective John Kiernan did not obtain medical treatment for § 87(2)(b)	B . Unsubstantiated
C . DT3 John Kiernan	Abuse: At § 87(2)(b) in Manhattan, Detective John Kiernan threatened § 87(2)(b) with the use of force.	C . Unsubstantiated

Case Summary

On January 25th, 2019, Lieutenant Brian Flynn of the 14th Precinct reported this incident to IAB.

On January 25th, 2019, § 87(2)(b) was arrested and held in the holding cells of the 14th Precinct stationhouse in Manhattan. After being released from the holding cells to use the bathroom at around 11:48am, § 87(2)(b) attempted to put his cell phone into his pocket. Detective Adrian Calemme of Midtown South Detective Squad grabbed § 87(2)(b) arm and twisted it behind to prevent him from reaching into his pocket, causing § 87(2)(b) shoulder to dislocate (**Allegation A: Force, exonerated**). EMS then transported § 87(2)(b) to § 87(2)(b) where he met his arresting officer, Detective John Kiernan of Midtown South Detective Squad. While they were at the hospital, Det. Kiernan allegedly discouraged § 87(2)(b) from obtaining X-rays (**Allegation B: Abuse of Authority, unsubstantiated**) and allegedly told § 87(2)(b) “He did not do anything to your shoulder. You want to see something done to your shoulder?” (**Allegation C: Abuse of Authority, unsubstantiated**).

The investigation obtained video footage from the 14th Precinct stationhouse, however, the footage does not capture this incident (Board Review 14).

Findings and Recommendations

Allegation A—Force: At the 14th Precinct stationhouse in Manhattan, Detective Adrian Calemme used physical force against § 87(2)(b)

On January 25th, 2019 at 10:20am, § 87(2)(b) was arrested for § 87(2)(b) and lodged at the 14th Precinct by warrant officers to await processing by Det. Kiernan. At around 11:48am, § 87(2)(b) asked to use the bathroom. While on his way to the bathroom, § 87(2)(b) asked a female officer, identified by the investigation as Detective Kara Darcey of Midtown South Detective Squad, if he could grab his phone (Board Review 01). Det. Darcey instructed § 87(2)(b) to grab his jacket and phone, which were on top of a cabinet near the holding cells, on his way back from the bathroom. § 87(2)(b) did so and as he put his phone into his pants pocket, another officer, identified by the investigation as Det. Calemme, grabbed his left arm to prevent him from reaching into his pocket and twisted his arm behind him. § 87(2)(b) added that he did not believe Det. Darcey had spoken to Det. Calemme about § 87(2)(b) phone. § 87(2)(b) noted that another officer, identified as Detective Gary Scollard of Midtown South Detective Squad, also grabbed him but only to hold him still.

§ 87(2)(b) alleged that because of the way Det. Calemme twisted his arm, his left shoulder popped out of the socket. § 87(2)(b) stated that the tissues in his shoulder were already weak from playing basketball and that his left shoulder had been dislocated previously. The detectives then put § 87(2)(b) back into the holding cell and called for an ambulance. While waiting for EMS, § 87(2)(b) shoulder went back into the socket on its own. When EMS arrived, they examined § 87(2)(b) gave him a sling, and transported him to the hospital.

§ 87(2)(a) PHL § 18(6)

The TRI prepared by Det. Calemmo indicates in “force used,” Det. Calemmo, “pulled subject’s left arm away from jacket” and that the reason for this force was in defense of self and other MOS, and to overcome resistance/aggression (Board Review 02). Det. Darcey and Det. Scollard, who were both witness to the incident, also prepared TRIs which indicate that they did not personally use force against § 87(2)(b) (Board Review 03, Board Review 04).

Det. Calemmo and Det. Darcey were both interviewed about this incident (Board Review 05, 06). Neither recalled being present for or involved in lodging § 87(2)(b) and both denied that they participated in searching or storing any of § 87(2)(b) property. Det. Darcey stated that when § 87(2)(b) had asked her to use the bathroom, she had enlisted the help of Det. Calemmo and Det. Scollard to escort him to the bathroom.

Det. Darcey and Det. Calemmo both testified that walking § 87(2)(b) to the bathroom occurred without incident and that § 87(2)(b) did not make any requests for his property at that time. On the way back from the bathroom, § 87(2)(b) stated he was cold and asked for his jacket, which was on top of a cabinet directly across from the holding cell door. Both Det. Darcey and Det. Calemmo stated that this was the only request § 87(2)(b) made for his jacket and both denied hearing § 87(2)(b) make any requests for his cellphone. Det. Darcey clarified that generally, detectives will leave any property that prisoners have on their person, including outerwear, phone, identification, and wallet, on top of this cabinet so that it is easy for the person to grab their belongings when they leave. Det. Darcey was not involved in positioning the jacket or any of § 87(2)(b) property on top of the cabinet nor had she searched the jacket. Det. Darcey did not know what else was on top of the filing cabinet besides § 87(2)(b) jacket. Det. Calemmo did not know if the jacket had been searched at all and reiterated that § 87(2)(b) had been lodged prior to his arrival at work that day.

One of the detectives, neither Det. Darcey nor Det. Calemmo recalled who specifically, told § 87(2)(b) that he could grab his jacket before he reentered the holding cell. Det. Darcey stated that as § 87(2)(b) grabbed his jacket with both hands, she noticed that he had tucked one of his hands into the folds of the jacket and appeared to be cupping something. She asked him, “What do you have in your jacket?” and § 87(2)(b) did not respond to her. She then told Det. Calemmo and Det. Scollard that § 87(2)(b) had something in his hand in the jacket and § 87(2)(b) replied, “no.” He refused to put down the jacket or show the detectives what he had in his hand. Det. Calemmo stated that after § 87(2)(b) had grabbed his jacket, Det. Darcey yelled, “He has something.” When Det. Calemmo then looked at § 87(2)(b) he saw that § 87(2)(b) had his jacket draped over his arms in front of his body and that § 87(2)(b) had his left hand tucked inside the folds of the jacket between his jacket and his body. Det. Calemmo stated that it was not a normal motion for someone putting a jacket on and that from his observations, it looked like § 87(2)(b) was trying to conceal something.

Both Det. Darcey and Det. Calemmo stated that after Det. Darcey pointed out that § 87(2)(b) appeared to be concealing an unknown item, Det. Calemmo grabbed § 87(2)(b) arm. Det. Calemmo stated that he extended § 87(2)(b) left arm straight out behind him whereas Det. Darcey stated that Det. Calemmo and Det. Scollard had pulled § 87(2)(b) arms swiftly out to his sides, however, both detectives were consistent that the force used was minimal and was employed to uncover what § 87(2)(b) had in his hand. Det. Calemmo added that he grabbed § 87(2)(b) arm because he did not know if § 87(2)(b) had a weapon.

Once § 87(2)(b) arm was extended, Det. Calemmo and Det. Darcey observed that § 87(2)(b) was holding a cellphone. Det. Darcey removed the cellphone from his hand, then § 87(2)(b) was then put back into the holding cell without the cell phone. Det. Darcey stated in her

interview that prisoners are not allowed to have cellphones in the holding cell and clarified that once she took the phone, she put it back on top of the filing cabinet. Both Det. Calemme and Det. Darcey stated that after § 87(2)(b) reentered the holding cell, he began to complain of pain, at which point an ambulance was called and § 87(2)(b) was transported to § 87(2)(b).

NYPD Patrol Guide Procedure 221-01 states that, “Force may be use when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody” (Board Review 07).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B—Abuse of Authority: At § 87(2)(b) in Manhattan, Detective John Kiernan did not obtain medical treatment for § 87(2)(b)

Allegation C—Abuse of Authority: At § 87(2)(b) in Manhattan, Detective John Kiernan threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that Det. Kiernan met him at § 87(2)(b) where Det. Kiernan allegedly persuaded him to not get x-rays. Det. Kiernan told § 87(2)(b) that they already have a case against him and that the situation could be easier or more difficult depending on § 87(2)(b) choice of medical treatment. Det. Kiernan told § 87(2)(b) that he knew § 87(2)(b) had a son, and was sure § 87(2)(b) wanted to get back to him, and that going through with the medical treatment could make things harder. Det. Kiernan also said something along the lines of, “He did not do anything to your shoulder. You want to see something done to your shoulder?” The doctor then saw § 87(2)(b) and after § 87(2)(b) explained what happened to his shoulder, he gave § 87(2)(b) ibuprofen. § 87(2)(b) then refused x-rays because he felt forced by Det. Kiernan.

§ 87(2)(a) PHL § 18(6)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Det. Kiernan testified that when he spoke with § 87(2)(b) at § 87(2)(b) § 87(2)(b) refused medical attention and told the doctor that his shoulder was fine (Board Review 09). With the doctor present, Det. Kiernan watched § 87(2)(b) remove his arm from the sling and circle his arm, demonstrating that his shoulder was fine. § 87(2)(b) told Det. Kiernan that he

had injured his shoulder at Rikers Island playing basketball and that he did not need x-rays. Det. Kiernan denied that he had any other conversation with § 87(2)(b) about x-rays. Det. Kiernan did not hear any medical personnel advise § 87(2)(b) to obtain x-rays.

Det. Kiernan denied having any conversations with § 87(2)(b) about medical treatment prolonging his process with the case and denied that he ever discouraged § 87(2)(b) from receiving medical treatment. Det. Kiernan did not make any statements to § 87(2)(b) about how his shoulder was not really injured nor did he state, “You want to see something done to your shoulder?” or threaten § 87(2)(b) with the use of force.

Det. Kiernan provided the investigation with a copy of his DD5s from this day in which he wrote, “On January 25th, 2019, at approximately 1700 hrs. I am adding to this case statements made by § 87(2)(b) inside § 87(2)(b) emergency room at approximately 1330 hrs. § 87(2)(b) states: I hurt my shoulder playing basketball at Rikers a while ago, I am fine, I came here because I wanted to kill time, I don’t need any x-rays I’m good, my shoulder is fine, I want to refuse all medical aid, no one hurt me” (Board Review 10).

Det. Darcey recalled that she waited at the hospital with § 87(2)(b) until Det. Kiernan arrived with another detective, then left. Det. Darcey did not recall hearing § 87(2)(b) make any statements about wanting medical attention nor did she hear him make any statements about refusing medical attention. Det. Darcey did not hear Det. Kiernan discourage § 87(2)(b) from obtaining x-rays and denied that she ever heard Det. Kiernan state anything along the lines of, “You want to see something done to your shoulder?”

§ 87(2)(g)
As such, it is recommended that **Allegation B** be closed as **unsubstantiated**.

§ 87(2)(g)
As such, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (Board Review 11).
- Detective Adrian Calemme has been a member-of-service for 19 years and has been a subject in three prior CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- This is the first CCRB complaint in which Detective John Kiernan has been a subject.

Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- As of August 15th, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 13).

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date